

  
June 6, 1989

I am a soldier in the United States Army who happens to have an interest in the UFO Phenomenon. This interest is as a private citizen. My research is conducted on my own time and at my own expense. However, I have found that a servicemember must fight for his/her right to have an interest in anything that the servicemember's superior officers feel may create an embarrassment to command or the military. Although it may appear that the servicemember has been totally vindicated, this is not always the case, as in my case.

Those individuals who have followed the events that have happened to me, as a result of my out-spokenness on UFO's, are aware that the Commander, United States Army Fourth ROTC Region (Cdr, USA 4ROTCR), out of Fort Lewis, Washington directed that a Commander's Inquiry be conducted into the background leading to my Relief For Cause Enlisted Evaluation Report (RFC/EER). What they were not aware of is that this was done not as a result of my Inspector General's (IG) Complaint, but after the Cdr, USA 4ROTCR had directed and completed a 15-6 Investigation concerning the, "Climate of Command" within my unit. You see I was not the only one being maltreated by my command, but the IG did not did want to discuss this issue. I was told that this was my complaint and it did not involve anyone else. As a result of this investigation, the 3 ranking officers in my unit were relieved of duty, I was reinstated in my job, and the Commander's Inquiry, concerning my RFC/EER was directed.

Although the Commanding General recommended that the RFC/EER be removed from my records, the Department of the Army replied that it would have to remain in my records. Should I wish it to be removed, I could appeal the RFC/EER. If after a General Officer, having conducted an inquiry into a matter, states something is unjust and unfair, and the Army still feels it is necessary for the servicemember to appeal that matter, I would suggest that the Army was being unfair to the servicemember, as well as lacking justice. However, I did not expect anything less from the Department of the Army as I feel this entire matter has resulted in ending my military career. I do not believe I will ever be promoted or be permitted to remain on active duty beyond reaching the 24 year mark. I feel this is directly related to my standing up for what I believe to be right and fighting an injustice.

The Department of the Army Inspector General's (DAIG)



findings on my complaint were at best watered down so as to not give the impression that I was maltreated or that my rights had been violated by my chain of command, thereby embarrassing the Army. Let me list some examples from the three page letter that the DAIG's Office sent to me in response to my complaint:

1. "Our inquiry determined the ROTC Department at the New Mexico Military Academy (Institute) had a policy letter which stated 'No cadre member will contact any senior member of higher headquarters on any subject or for any reason without consulting the XO and PMS. This includes persons or agencies outside the ROTC chain of command. The military chain of command will be used at all times.' A legal review, requested by the 4th ROTC Region Inspector General, established the policy letter inhibited exercise of an individual's rights. Subsequent to the opinion, the Commander, Fourth ROTC Region, directed the policy letter be rescinded."

REBUTTAL: What the DAIG's Office overlooked was that the original unit policy letter, dated October 6, 1987, which stated, "No cadre member will contact any senior member of higher military headquarters on any subject or for any reason without first consulting and getting the permission of the XO or PMS." This policy letter was changed to the above (item 1) on January 13, 1988 after I informed the Professor of Military Science that the Staff Judge Advocate at White Sands Missile Range had informed me that the policy letter was illegal and that I should go to the IG about the matter. After the policy letter was changed to read as in item 1, I informed both the 4th Region and Department of Army IG Offices that I felt this letter too was illegal.

It should be noted here that I did not have a right to talk to a military lawyer as my action was considered to be an administrative action. However, before my oppressors answered my IG Complaint, they had their responses reviewed by a Lieutenant Colonel Carroll of the Staff Judge Advocate's Office at Fort Bliss, Texas. Please note that the ones I was complaining about could have legal counsel while I was denied legal counsel by regulation. This is called a fair and equal system. This is military justice.

2. "The inquiry also determined that the Department Executive Officer criticized you after you received a telephone call during duty hours from a congressional staffer who was responding to your inquiry on UFO's. We established, however, you were criticized not because of your contact with a congressional staffer, but because you had been told to confine your interest in UFO's to non-duty time."

REBUTTAL: Both Lieutenant Colonel Scullary and Major Flachsbarth made reference to the telephone call I



received from the congressional staffer in their responses to my IG Complaint. This was the only item mentioned in their responses dealing with my UFO related activities during duty time. First, the call had nothing to do with UFO's. Secondly, the congressional staffer called me. I did not call her. Does this mean that it is a violation of Army Regulations for a servicemember to receive a telephone call from a member of Congress or a member of the Congressman's staff? If so, should not the military make congressional members aware of this so they will not cause undue hardship on the people they represent. Better still, should not the military make their personnel aware of this requirement if it exist?

3. "We could neither substantiate nor refute your allegation that you were being pressured to retire. Both Lieutenant Colonel Scullary and Major Flachsbarth denied pressuring you to submit your retirement papers. The documentation you provided as identifying you and several other noncommissioned officers for retirement was prepared by Lieutenant Colonel Scullary and Major Flachsbarth. It was merely a projection of when the individuals became retirement eligible."

REBUTTAL: The document referred to in the DAIG's letter has a subject line entitled, "Personnel Replacements." Also, the document started out, "Request requisitions be submitted to replace the following personnel who are projected to depart during or at the end of SY (School Year) 87-88." I was the only one "projected" to retire. The others were either due change of duty station (PCS) or getting out of the Army (ETS).

The DAIG chose not to address the hand written memo dated June 21, 1987, from LTC Scullary to MAJ Flachsbarth which stated, "MAJ F, I though you'd like me to save this for you. When does SFC Stone hit the 20 yr (retirement eligible) Mark? LTC S." This note was attached to a newspaper article dealing with my interest in UFO research.

The DAIG chose not to address the minutes of the August 3, 1987, Staff Meeting at New Mexico Military Institute which contained the following from LTC Scullary, "The Military Science Department will be replacing all NCO's this year."

The DAIG chose not to address the medical and psychological referrals that were forced upon me and their results (i.e. "It would appear that command may have overreacted to newspaper article after patient interviewed by reporter, an 'embarrassment' to command.").

4. "Our inquiry substantiated your allegation that your interest in UFO's was a consideration in the chain of command trying to get you to retire. Interviews with members of the ROTC Detachment cadre indicate the UFO issue was blown out of proportion by the chain of command.



Additionally, Major Flachsbarth's statement in the October 27, 1987, Memorandum For Record adds credibility to the preception that the chain of command was overly concerned over your interest in UFO's."

REBUTTAL: This would appear to be in conflict with the statement made in the DAIG's letter as referred to in item 3 above. However, the DAIG informed me early in their "investigation" of my complaint that they would decide who and who not to talk to. As a matter of fact the DAIG decided to talk to other members of my ROTC Detachment only after they were made aware that the detachment was under a 15-6 Investigation concerning the unit's, "Climate of Command." The DAIG did not want to get caught up in the 15-6 Investigation. The DAIG was handling my complaint from 2,000 or more miles away and refused to send an investigator to the unit to investigate my complaint. Had the DAIG sent an investigator, there would have been no need for a 15-6 investigation as the DAIG Investigator would have seen first hand what was going on in the unit and hopfully would have resolved the problems. However, with the 15-6 Investigation going on and the DAIG's Office dragging their feet on my complaint for over 4 months, this could really create an embarrassment to the DAIG's Office. Especially if the 15-6 Investigators were to come to different conclusions than those of the DAIG's Office (which they did).

5. "In regard to your Evaluation Report, if you feel it is unjust or improper, your only recourse is to appeal the report."

REBUTTAL: Apparently the Commanding General, Fourth ROTC Region, as well as the investigating officer for the Commander's Inquiry, felt that the RFC/EER was unjust as attested to by their statements. If the Army cannot remove this RFC/EER from my records based upon the evidence, they cannot say this is a fair and just system.

6. "We did not substantiate your allegation that your Enlisted Evaluation Report was doctored, Our inquiry determined that after you signed the report, there were administrative changes made to comply with the regulation."

REBUTTAL: Remember, the DAIG's Office refused to send an investigator to the unit to investigate my complaint. Colonel Lanny Standridge was not only the investigating officer for the 15-6 investigation, but also the officer assigned to do the Commander's Inquiry concerning my RFC/EER. He did visit the unit during his investigations.

Colonel Standridge states in his 7 page report, "A close examination of the forms, in addition to SFC Stone's testimony by phone, indicates tampering, back-dating, and after-the-fact revisions that raise questions regarding the



credibility of the record that is supposed to document his sudden spate of inefficiency."

Colonel Standridge further stated in his report, "The EER's for the period 8702 thru 8710/8801 appear to be a singularly unique example of administrative mishandling. There are compelling indications of ex post facto changes in the report apparently in an effort to cover up significant administrative flaws and hide the fact the first report was submitted late. In fact, the difficult investigative reconstruction of events, based on individual MRF's, strongly suggests that action against SFC Stone was not originally intended as a 'relief' but merely as a means to conveniently and quickly eliminate him as an 'embarrassment'."

There were 5 version of this EER. On March 1, 1988 I was told by Major Flachsbarth that Fourth Region had directed her to have me back-date the EER to October, 1987. I stated I would sign the EER but I would not backdate it. As a result of my refusal to back-date the EER, Fourth Region Personnel, decided to take the second version of the EER and make it appear that I was relieved in January, 1988 TO COVER UP THE FACT THAT THE EER WAS LATE AS WELL AS THE FACT THEY (4TH REGION PERSONNEL) WERE NOW DIRECTING THE TYPE OF EER I WAS TO RECEIVE (BE IT AN ANNUAL OR RELIEF FOR CAUSE).

I have taken a stand concerning this issue. I will fight this issue from now til Hell freezes over. No retreat. No surrender. What happened to me and the way it was handled by the Department of the Army Inspector General's Office was wrong. In my opinion, the DAIG's Office was more concerned about this incident becoming an embarrassment to command then it was about justice or correcting any wrongs done the servicemember. To be sure in matters like this, the DAIG would appear to be more the commander's advisor (at the soldier's expense) then a fair complaint system for the enlisted soldier. I can't help but wonder how many other soldiers have been abused by this attitude of indifference displayed by the DAIG's Office as in my case.

I ask you to please make a full inquiry into this matter on my behalf. Demand a full accounting of the DAIG's actions and inquire as to how they plan to deal with future complaints to insure fair treatment of the soldier as opposed to covering up the facts so the might find in favor of the command at the expense of the enlisted soldier. Enlisted soldiers are not just numbers, they too are human and should be treated fairly.

As I would die for the principals that make this nation of our's great, so shall I fight injustice of this kind, to preserve those same principals.

I will continue to file "Freedom of Information Act"

requests, write members of Congress, and write articles on UFO's based upon open information that I obtain or have already obtained from the above actions. I do believe the American Intelligence Community is hiding the truth and the facts concerning UFO's from the American Public. I would never breach security to prove this point. However, if the United States Army does not wish for me to continue my interest in UFO's, then Sir, they need to tell me this. Unlike the so-called Intelligence Agents code named Condor and Falcon, I make no effort to hide my identity, my interest in UFO's or the fact I am in the United States Army. Also, I always make it known that my interest in the UFO Phenomenon is personal and has nothing to do with my military duties. The only way my interest in UFO's will become a military issue is if the United States Army wishes to make it such.

I remain respectfully,

